

24STCV16656 24STCV16656

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Case Number: 24STCV16656 Hearing Date: August 31, 2026 Dept: 300

CASE NUMBER: 24STCV16656

CASE NAME: Vanessa Valdes vs. Stewart Lucas Murrey

TYPE OF MOTION: Motion to Compel Discovery Responses and Request for Sanctions

FILING PARTY: Plaintiff Vanessa Valdes

RESPONDING

PARTY: Defendant Stewart Lucas

Murrey

HEARING DATE: August 31, 2026

Instant Motion

Plaintiff moves the Court for an order compelling

Defendant to provide verified, code-compliant responses without objections to

Plaintiff's Requests for Admission, Set Two and Form Interrogatory No. 17.1.

Additionally, Plaintiff seeks an award of sanctions "in an amount to be determined by the Court."

Discussion

Plaintiff moves the Court for an order compelling

Defendant to provide verified, code-compliant responses without objections to

Plaintiff's Requests for Admission, Set Two and Form Interrogatory No. 17.1.

Additionally, Plaintiff seeks an award of sanctions “in an amount to be determined by the Court.”

1.

Requests for Admission

On May 14, 2026, Plaintiff propounded the instant discovery on Defendant via electronic service. (Motion, p. 2.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared, unless on motion of the requesting party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response.” (Code Civ. Proc., § 2033.250(a).)

Code of Civil Procedure section 1010.6 governs electronic service of documents and provides that “[a]ny period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days....” (Code Civ. Proc., § 1010.6(a)(3)(B).) As such, Defendant’s deadline to respond was June 15, 2026. Plaintiff declares that Defendant’s responses were received on June 15, 2026. (Valdes Decl., ¶ 4.) As such, Defendant’s responses were timely served.

“The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.” (Code Civ. Proc., § 2033.240(a).)

For requests for admission, an unverified response is tantamount to no response at all. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636; *Garber & Assoc. v. Eskandarian* (2007) 150 Cal.App.4th 813, 817, fn. 4.)

Where the response contains both answer and objections, there is no need to verify that portion of the response containing the objections. But the portion containing fact-specific responses must be verified. (See *Food 4 Less Supermarkets, Inc. v. Superior Court* (1995) 40 Cal.App.4th 651, 657.) Here, Defendant’s responses to the Plaintiff’s Requests for Admission, Set Two, are unverified. (See Valdes Decl., Exhibit D.) However,

Defendant's responses contain substantive denials in addition to a host of objections. (Ibid.)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Here, the Court finds that the requested relief is improper as Defendant served a timely response to the propounded discovery. Further, although unverified, Defendant's hybrid response to Plaintiff's Requests for Admission are in substantial compliance with Code of Civil Procedure section 2033.220. Thus, the requested relief is improper.

2.

Form Interrogatory No. 17.1

Pursuant to Code of Civil Procedure section 2030.290, "[i]f a party to whom interrogatories are directed fails to serve a timely response...[t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or the protection for work product...[and] [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Ibid., § 2030.290 (a)-(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that needs to be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.)

As stated above, the record demonstrates that Defendant timely served a response to Form Interrogatory No. 17.1. Further, in response to Form Interrogatory No. 17.1, "asserted objections and provided no

substantive response.” (Valdes, Exhibit E; See Murrey Decl., Exhibit K.) Objection only responses do not require verification. (See Code Civ. Proc., § 2030.250(a).) Additionally, in reply, Plaintiff concedes that “on July 16, 2026,” Defendant served a verification as to Form Interrogatory No. 17.1. (Reply, p. 3.)

Accordingly, as Defendant timely served objection only responses to Plaintiff’s Form Interrogatory No. 17.1, and has provided a verification to such response prior to the hearing on the instant motion, the requested relief is improper.

3.

Sanctions

As Defendant served responses in substantial compliance prior to the filing of the instant motion, Plaintiff’s request for sanctions is DENIED. Defendant’s request to impose a sanction under Code of Civil Procedure section 2033.290(d) is DENIED as improper and the Court declines to impose sanctions under Code of Civil Procedure section 2023.030.

Conclusion

Based on the foregoing, the motion is DENIED. The requests for sanctions are DENIED.